

19AQMM25R0008
Department of State 2025 Design-Build Contract
for
United States New Embassy Compound (NEC)
Ulaanbaatar, Mongolia

Solicitation of Proposals

Phase I – Minimum Mandatory Requirements of Offerors

THE U.S. DEPARTMENT OF STATE (DOS), Bureau of Overseas Buildings Operations (OBO) is requesting proposal submissions for Design-Build Construction Services for the construction of a New Embassy Compound in Ulaanbaatar, Mongolia. The Project is described below. OBO seeks to commission our nation's top constructors to produce facilities of outstanding quality and value.

This acquisition is full and open competition subject to the Omnibus Diplomatic Security and Antiterrorism Act of 1986, as amended, 2025 NDAA § 7214, (Public Law 118-159) ("Omnibus Act"). This solicitation will consist of two phases:

Phase I – Minimum Mandatory Requirements (MMRs) Phase 1 Proposal Request from Offerors for Eligibility Determination (see below); and

Phase II – Site Visit and Request for Phase 2 Proposals (Technical and Price) from Eligible Offerors.

See Section 2 below for further information.

1. Project Description (Secret Facility and Personnel Security Clearance Required)

19AQMM25R0008: Design-Build of the New Embassy Compound (NEC) in Ulaanbaatar, Mongolia.

Property Description: The Ulaanbaatar New Embassy Compound (NEC) project will consist of the design, construction and commissioning of; an approximate 12,024 gross square meter new office building, onsite residential facilities of approximately 1,102 gross square meters, dining hall, storage and maintenance facilities, access control facilities, utility and site infrastructure, parking facilities, a helicopter landing zone. The project is located on 4.01 hectares (9.9 acres) in the Suruga district. The official project address is 18th Khoroo, Khan-Uul District, Ulaanbaatar, Mongolia. The site is an undeveloped greenfield. The land parcel is relatively flat with some vegetation and slopes gently from east to west. The property is bounded along its perimeter by two major roads, Japan Town Street (a major street) to the north, across from the National Park and Olympic Avenue to the east. The Chiggins khan international airport is located approximately 47 kilometers (30 miles) southwest of the site.

Project Scope: The project scope includes a new office building (NOB), compound access control facilities (CAC's), support annex (SPX), utility building, mail screening facility, marine security guard quarters (MSGQ), and parking facilities. Construction of a perimeter wall is also required.

Regarding the physical project location, the contractor shall work within the USG property line. Contractor is responsible for coordination with local utility providers and connections to local services outside the USG property line. Work on property and outside the property line may include but is not limited to design and construction of a public greenway, driveway connections, grading, drainage, temporary construction access, erosion control during construction and final stabilization. Repair of disturbed areas outside the USG property line shall meet or exceed the pre-contract condition.

This is a Design-Build contract. The awarded contractor shall be provided with bridging documents that the contractor shall develop to 100% final design.

Approximate construction cost: \$300 – 330 million

2. Solicitation Process:

This solicitation will consist of two phases:

Phase I – Minimum Mandatory Requirements (MMRs) of Offerors

This announcement of solicitation of Minimum Mandatory Requirements (MMRs) proposals is Phase I. Offerors submitting proposals to this solicitation for Phase I shall address the following criteria set forth under Section 3, “Phase I Detailed Instructions” in their Phase I proposal. The Department of State (DOS) will evaluate the eligibility of Offerors based on the evaluation criteria set forth below. Only Offerors determined to be eligible or conditionally eligible in Phase I are eligible for participation in subsequent Phases and/or for award. The structure of the Offeror (prime or joint venture) must remain the same throughout each subsequent Phase.

Definitions:

“Eligible” – An offeror that meets all Phase I minimum mandatory requirements and is deemed eligible for participation in Phase II and for consideration of award.

“Conditionally eligible” - An offeror that *may* meet all Phase I minimum mandatory requirements prior to contract award without the need for discussions and/or proposal revision (e.g. with respect to the Omnibus requirements, the offeror will reach substantial completion of similar projects by award and/or meet the incorporation deadlines per Certification 2 in the Omnibus Statement of Qualifications; and/or may meet the security clearance MMR. NOTE: The Department is not obligated to extent the acquisition timeframe or delay the contract award to accommodate an Offeror’s ability to become fully eligible.

Offerors that are not determined “eligible” or “conditionally eligible” at Phase I will not be eligible for participation in Phase 2. Note: An Offeror must be determined to fully meet all MMRs to be eligible for consideration for award.

The Government may conduct an information session for interested Offerors prior to the receipt of Phase I submissions. A separate announcement will be issued on the Contract Opportunities section of the SAM.Gov webpage to specify the location, date, and time.

Phase II – Requests for Proposals from Eligible/Conditionally Eligible Offerors

Those Offerors determined to be eligible or conditionally eligible in Phase I in accordance with this notice will be issued a formal Phase II Request for Proposal (RFP) for the project and invited to participate in a site visit and submit technical and pricing proposals. Phase II proposals shall include both technical and pricing proposals for the design-build construction. As noted above, only Offerors determined to be eligible or conditionally eligible in Phase I are eligible for participation in subsequent Phases and/or for award.

Offerors will be required to participate in a visit to the project site, anticipated to be within 10 to 15 days after the issuance of the Phase II RFP depending on travel and access restrictions.

The project scope requires the D/B contractor to complete all design and engineering documents based on the project specific design direction that will be provided in the RFP design requirements. The Government will provide bridging level design documents that will include, at a minimum, a site utilization plan; building massing and exterior elevations; space and requirements standards, organizational relationships, space requirements program; building utilities and infrastructure design; and supporting narratives, where applicable.

Construction services will include providing construction labor and materials to execute the OBO-accepted design; on-site organization with management to ensure overall project coordination; and overall control throughout the life of the project. Required services include preparation of construction documents, quality control plans, safety plans, project schedules, cost estimates, and project close-out activities.

The technical proposal will require detailed information in response to the RFP criteria relative to the designer and constructor's experience and past performance relevant to the project in size, scope and complexity as well as the proposed team's qualifications, management plan, and the proposed schedule. The technical proposal criteria will be identified in the Phase II RFP. These Phase II criteria are separate and distinct from the criteria considered relative to the Omnibus Act and generally an Offeror will be required to demonstrate technical experience by identifying four (4) comparable projects of similar size, scope and complexity, previously performed by the Offeror as a Prime or by the JV and or its member entities.

3. PHASE I DETAILED INSTRUCTIONS

Proposal Requirements for Phase I, Minimum Mandatory Requirements of Offerors:

The Offeror shall submit sufficient documentation to allow DOS to evaluate its compliance with the Mandatory Minimum Requirements (MMRs) listed below. Submissions that are missing the required information or otherwise do not comply with the submission requirements may be eliminated from consideration at the Contracting Officer's determination.

3.A. Omnibus Diplomatic Security and Antiterrorism Act of 1986 – U.S. Person Statement of Qualifications – MMR #1

The Offeror must complete **all** certifications and provide **all** required attachments within the "Certifications Relevant to Public Law 99-399, *as amended*, Statement of Qualifications for Purpose of Section 402 of The Omnibus Diplomatic Security and Antiterrorism Act of 1986" (*The Statement of Qualifications is attached to this SAM.gov announcement and may be obtained from the DOS Contract Specialist/Officer listed at the end of this notice and has been updated to reflect the amendments consistent with the 2025 National Defense Authorization Act (NDAA) changes to 22 U.S.C. § 4852, see 2025 NDAA § 7214. STREAMLINE QUALIFICATION OF CONSTRUCTION CONTRACT BIDDERS*) and submit as part of its Phase I, Minimum Mandatory Requirements proposal. Sufficient information should be provided in the Certifications and attachments thereto to determine eligibility under Public Law 99-399. Firms eligible for award under this acquisition are limited to "United States Persons" and "United States Joint Venture Persons" as defined for purposes of Section 402(c)(2) of the Omnibus Act.

For Certification # 4 of the Statement of Qualifications: To demonstrate performance of similar construction work for Omnibus Diplomatic Security and Antiterrorism Act of 1986 purposes, the offeror needs to provide information demonstrating that it has successfully completed in the United States or on a Federal Contract abroad a construction contract or subcontract involving work of the same general type and complexity as the solicited project and having a contract or subcontract value of at least **\$150 million**. The value of the construction contract or subcontract offered to demonstrate performance will not be adjusted for inflation, currency fluctuation, or any other market forces.

IMPORTANT NOTE: To the extent the Offeror anticipates proposing two or more entities in Phase II and/or relies on related entities to perform under the contract and/or to meet the stated requirements of the Solicitation, the Offeror should be structured as a formal JV or Prime/Subcontractor and the Offeror itself (formal JV or Prime) and must be registered in SAM.gov. Also, as identified below, the Offeror itself should possess a security clearance or be able to obtain one in accordance with the terms of the Solicitation. Security clearance requirements are not the same as meeting the definition of a "US Person" under the Omnibus Act and as noted, the Phase II criteria are separate and distinct from the criteria considered to establish whether an entity meets the Omnibus Act requirements.

This is a pass/fail evaluated area. An Offeror determined to be eligible or conditionally eligible is considered to achieve a pass/passing rating. The Government reserves its right but does not intend to hold discussions in Phase I. Offerors must provide all required information and attachments as stated in the U.S. Person Statement of Qualifications. Phase I Proposal submissions not meeting the submission requirements, or Offerors providing an inaccurate or incomplete submission, risk being deemed unresponsive and rejected from further evaluation/consideration.

Proposal submissions from Offerors who do not receive at least a conditionally eligible rating in Phase I will not be further evaluated and the Offeror is not eligible to participate in the subsequent Phase II.

Offerors are advised that the government will not pay for information submitted in response to this announcement, nor will it compensate offerors for any costs incurred in the development/submission of its Phase I proposal.

3.B. Security Clearance Requirement – MMR #2

In order to be eligible to receive award and perform under this contract, the eligible or conditionally eligible offeror including Joint Venture offerors meeting MMR #1, must possess a Defense Counterintelligence and Security Agency (DCSA) Secret facility security clearance (FCL) with Secret safeguarding capability, issued in accordance with the National Industrial Security Program Operating Manual (NISPOM), DoD 5220.22-M.

Foreign firms are not eligible for FCLs and are therefore ineligible to participate in this acquisition. Only U.S. firms organized and operating in the U.S. or Puerto Rico, or a U.S. possession or trusted territory, are eligible for facility clearances. U.S. firms which are determined to be under Foreign Ownership, Control, or Influence (FOCI) are not eligible for an FCL unless actions (as directed and approved by DCSA) can be taken to effectively negate or reduce associated FOCI risks to an acceptable level.

CURRENT FCL HOLDERS: Offerors already possessing the necessary FCL must submit their appropriate Commercial and Government Entity (CAGE) Code, facility clearance and safeguarding level with the Phase I proposal.

OFFERORS WITHOUT AN FCL: If an otherwise conditionally eligible offeror relative to MMR #1 does not possess the necessary FCL at the time of proposal submission, DOS/Diplomatic Security will sponsor the firm for an FCL and sent a Sponsorship Letter at the time the Offeror is determined to be conditionally eligible under Phase I. Sponsored firms are expected to acknowledge and be responsive to Diplomatic Security for any required information and/or form completion(s). If the sponsored firm does not respond to Diplomatic Security within ten (10) business days with the required information, the offeror may be deemed unresponsive and unable to meet MMR#2's security clearance requirement, the Department may terminate the clearance sponsorship.

Sponsored firms will not receive the classified portions of the Phase II RFP until they have been issued the appropriate FCL and received Defense Counterintelligence and

Security Agency (DCSA) approval to safeguard classified documents. The sponsored firm is afforded 120 calendar days from the notice of Phase I eligibility to obtain the necessary FCL for the classified portions of the Phase II RFP. DOS sponsorship does not guarantee that the Offeror will receive the FCL, nor that it will be received within the 120-day period. The Department will not be obligated to extend the proposal submission due date, if any of the sponsored firms have not been issued the required clearance prior to the release of the classified construction documents as applicable to the conditionally eligible firms for their use in preparing their offers. The Department is not obligated to extend the acquisition timeframe or delay the contract award to accommodate an Offeror's ability to obtain its FCL. The Government will not award the contract to a firm not having been issued an FCL (with appropriate safeguarding capability).

Please visit the DCSA website for information on the clearance process and what information/steps will be required,
<https://www.dcsa.mil/Industrial-Security/Entity-Vetting-Facility-Clearances-FOCI/Facility-Clearances/>

Companies and Citizens of countries listed below will not be eligible to perform on this project in any capacity. DOS reserves the right, in its sole discretion, to determine suitability of contractor personnel to work on design, construction and other diplomatic facilities contracts.

- Belarus
- Cuba
- Hong Kong
- Iran
- North Korea
- Peoples Republic of China
- Russia
- Venezuela
- Vietnam

NOTICE: After award, the successful offeror selected for contract award must possess or obtain an Information System (IS) approved by DCSA for processing classified information up to the Secret level. Performance on this contract will require access to the Department's ProjNet-C, for receipt and transmission of all classified information, and a DCSA approved classified IS for processing classified information.

3.C. Active Entity Registration on SAM.gov – MMR #3

Offerors, including any offeror organized as a joint venture, must have an active SAM.gov registration at the time of Phase I proposal submission and throughout the procurement process.

This is a pass/fail evaluated area. **A proposal from any offeror whose registration is not active in SAM.gov at the time of Phase I proposal submission will be rejected and their Phase I submission will not be evaluated. Any Offeror that has been determined to be eligible or conditionally eligible as a "U.S. Person" or "U.S. Joint Venture Person" under Omnibus, must be registered in SAM as the same legal entity at the time of Phase I submission and throughout the procurement process. If the Offeror certifies that it is a Joint Venture to meet the Omnibus Act requirements, the Joint**

Venture must be the entity registered in SAM.gov at the time of Phase I submission and throughout the procurement process.

4. Closing Deadline for Submissions

ALL PROPOSALS MUST BE RECEIVED BY 3:00 P.M. Eastern Time on April 7, 2025.

Offeror must state the following on the cover of the proposal:

- 19AQMM25R0008: Design-Build of the New Embassy Compound (NEC) in Ulaanbaatar, Mongolia.
- Offeror's SAM.gov registration Unique Entity Identifier (UEI) number

ONLY Electronic submissions/responses are accepted. An offeror has two options to electronically submit their proposal submissions: Email or Google Drive shared to the below fan.gov email addresses. Regardless of the method, all proposals must be e-mailed/shared to the fan.gov email addresses below. *Do NOT upload anything to a third-party website and send us the link.* We are not authorized to download any documents from any third-party websites.

EMAIL PROPOSAL SUBMISSION INSTRUCTIONS:

The Subject of the email must include solicitation number and project name:
19AQMM25R0008, Design-Build of New Embassy Compound (NEC) in Ulaanbaatar, Mongolia.

Email proposal submissions are authorized to be sent to the following FAN addresses:

Primary: GreeneDL@FAN.gov

Note: Offerors who currently have FAN (Foreign Affairs Network) accounts may upload the proposals to the FAN Google Drive and share to the fan.gov email addresses listed above. If you do not have a FAN account, you can upload the proposals to a personal Google Drive then share. Sharing from your personal Google Drive account is acceptable.

GOOGLE/FAN DRIVE PROPOSAL SUBMISSION INSTRUCTIONS:

Please UPLOAD the Phase I proposals (with both PDF files) to your Google Drive (FAN – Foreign Affairs Network or personal) AND share/send the proposal from Google to the FAN.gov email addresses above and please give the CO's EDIT permission for these files. The files will just be downloaded.

In order to upload your proposals onto Google Drive and share, perform the following steps:

1. Go to drive.google.com, log into your Google account with your username and password. If you do not have a Google account, you will need to create one.
2. At the top left, click New then select File Upload or Folder Upload, and choose your file or folder you want to upload.
3. Right click the file or folder you want to share and select SHARE.
4. Enter these email addresses: GreeneDL@FAN.gov, Make sure the EDITOR option selected.
5. Click Send.

Clarification Requests

Any Requests for clarification, must be submitted, in writing to **Dudley Greene at GreeneDL@state.gov by no later than 2:00 p.m., Eastern Daylight Time, on March 28, 2025.** Clarifications and requests for information received after the deadline, shall not be accepted.